POLICY VERSUS PRAXIS:

Has the European Union Failed to Respond to the Refugee Crisis?

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This study analyzes the effects of supranational governance on the refugee crisis in the European Union (EU). The main argument is that the supranational institutions of the EU have often failed to adequately manage the refugee crisis according to its foundational principles of fair burden sharing and solidarity. This failure has gradually discredited the Union's basic normative principles such as solidarity, hospitality, and respect for human rights. We show that the gaps between certain policies adopted at the Union level and the practices at the national level have widened, and this has led to a familiar defeat of the normative domain by realpolitik, following some central tenets of classical realism. We aim to show that in several areas of EU policy, as well as how individual states have responded to them, national interests and burden shirking, rather than sharing, have unfortunately prevailed.

Keywords: European Union, refugee crisis, classical realism, solidarity, burden sharing, European agenda on migration, asylum seeking, migration policy, fundamental measures toward human movements, EU's border security, EU cooperation with third countries, Turkey-EU statement.

Bu çalışma, Avrupa Birliği uluslarüstü yönetişiminin mülteci kriziüzerindeki etkilerini incelemektedir. Temel varsayım, Avrupa Birliği'nin uluslarüstü kuruluşlarının, mülteci krizinin yönetiminde, Birliğin temel ilkeleri olan adil yük paylaşımı ve dayanışma konusunda çoğunlukla başarısız olduğu yönündedir. Bu başarısızlık, Birliğin, dayanışma, misafirperverlik ve insan haklarına saygı gibi temel normatif değerlerine olan güveni azaltmıştır. Birlik düzeyinde benimsenen politikalar ile ulusal düzeydeki uygulamaların arasındaki farklılıkların artması, normatif alanın, klasik gerçekçiliğin temel ilkelerini izleyen Real politik tarafından, aşina biryenilgisine yol açmıştır. Bu bağlamda AB'nin birçok politika alanında, bu alanlarda ulusal devletlerin verdiği yanıtlardan da hareketle, yük paylaşımından ziyade ulusal çıkarların ve yükten kaçınmanın hâkim olduğunu göstermek amaçlanmaktadır.

Anahtar Kelimeler: Avrupa Birliği, Mülteci Krizi, Klasik Realizm, Dayanışma, Yük Paylaşımı, Avrupa Göç Gündemi, Sığınma, Göç Politikası, İnsan Hareketlerine Yönelik Temel Önlemler, AB Sınır Güvenliği, AB'nin Üçüncü Ülkelerle Olan İşbirliği, AB-Türkiye Uzlaşısı.

POLÍTICA VERSUS PRAXIS:

¿HA FALLADO LA UNIÓN EUROPEA EN RESPONDER A LA CRISIS DE REFUGIADOS?

Este estudio analiza los efectos de la gobernanza supranacional sobre la crisis de refugiados en la Unión Europea (UE). El argumento principal es que las instituciones supranacionales de la UE a menudo no han logrado gestionar adecuadamente la crisis de refugiados de acuerdo con sus principios fundamentales de solidaridad y reparto justo de la carga. Este fracaso ha ido desacreditando gradualmente los principios normativos básicos de la Unión, como la solidaridad, la hospitalidad y el respeto de los derechos humanos. Mostramos que las brechas entre ciertas políticas adoptadas a nivel de la Unión y las prácticas a nivel nacional se han ensanchado, y esto ha llevado a la conocida derrota del dominio normativo tan crucial para las políticas que tratan con los refugiados por la realpolitik siguiendo algunos principios centrales de la política clásica de realismo. Nuestro objetivo es mostrar que en varias áreas de la política de la UE, así como en la forma en que los estados individuales han respondido, lamentablemente han prevalecido los intereses nacionales y elusion de las cargas, en lugar de compartirlas.

Palabras clave: Unión Europea, Crisis de refugiados, Realismo clásico, Agenda europea de migración, Medidas fundamentales para los

movimientos humanos, Seguridad fronteriza de la UE, Cooperación de la UE con terceros países, Declaración Turquía-UE.

该研究分析了欧盟针对难民危机实行超国家治理的影响。 其主要观点是，欧盟的超国家组织往往未能根据平等分担问题和齐心协力的基本原则充分解决难民危机。 这一问题逐渐使得欧盟如齐心协力、热情友好和尊重人权等基本原则名誉扫地。 该研究表明，在欧盟层面某些政策制定与在国家层面的具体实践之间的差距正在扩大，遵循古典现实主义的一些中心原则，这导致了国际现实主义政治对规范原则领域的再次失败。该研究致力于呈现欧盟在各地区的政策和个别国家的相应实践，以及相较于共同承担问题，不幸的是民族国家利益至上和逃避承担的情形更为普遍。

关键字：欧盟，难民危机，古典现实主义，齐心协力，共同承担，欧洲移民议程，寻求庇护，移民政策，针对人类运动的基本措施，欧盟的边境安全，欧盟与第三世界国家的合作，土耳其-欧盟声明。

Before the global coronavirus pandemic hit Europe hard in early 2020, the refugee crisis had become one of the European Union's (EU) top agenda priorities. This is so despite the other internal and external challenges facing the Union in recent years, including the 2008 Great Recession and Euro crisis, Brexit, the Crimean Crisis, the Ukraine Crisis (Börzel 2015, 8), and the beginning of the Syrian civil conflicts. All these challenges led to fundamental changes in millions of people's lives. Since the European refugee crisis, many people have tried to reach Europe using dangerous sea routes, hoping to gain refugee status. In 2015, this mass flow of irregular migrants peaked at over a million people—nearly 4,000 of whom drowned in the Mediterranean that year (Ellyatt 2020). The EU's responses to these events, which mostly change state by state, characterized the "refugee crisis" as influencing both states and the Union's institutions (Bulley 2017, 117).

The European Commission (EC) declared that the migrant crisis was over in March 2019 but emphasized an essential need for maintaining a comprehensive approach to migration management and border protection across the region (EC 2019a). Although numbers of refugees have reduced since the peak in 2015, there is uncertainty as to whether the crisis is indeed over today. UNICEF (2020) reported a 20 percent decrease

on 2019 figures regarding the 26,800 migrants and refugees[1] that arrived in Europe via the Mediterranean from January to June 2020. It cited that COVID-19 border and mobility restrictions contributed to the drop while also "congest[ing] reception facilities making hygiene measures and physical distancing difficult" (EC 2019c). Another source cites a total of 48,529 migrant arrivals in the Union from January to September 2020 (Ellyatt 2020). The International Organization for Migration (2020) has reported well over 100,000 migrants and refugees entering the Union by sea alone each year for the last six years with 2,299 and 1,283 deaths in the Mediterranean for 2018 and 2019, respectively. The crisis, and its continuing aftermath, has left deep scars in the Union, particularly for nations that have borne the brunt of unfair burden sharing, and is currently seen by practitioners as "dormant rather than resolved" (Ellyatt 2020).

The crux of the many institutional problems that have surfaced since 2015 was pinpointed by EC (2020) President Ursula von der Leyen in her September 2020 State of the Union address: "Those countries that fulfill their legal and moral duties or are more exposed than others must be able to rely on the solidarity of others in our whole European Union." In this article, we cover some of the cases where such reliance on the normative principle of solidarity has been, and remains, an extremely difficult political and policy objective for the Union as a whole and for individual states.

This study analyzes the effects of supranational governance on the refugee crisis in the context of the EU and the institutionalized mechanisms that have confounded fair burden sharing among Union members regarding refugees/asylum seeking policy. We aim to show that the supranational institutions of the EU have often failed to adequately manage the refugee crisis triggered by the Syrian civil war. This failure of crisis management has gradually discredited the Union's basic normative principles of solidarity, hospitality, and respect for human rights. As the gaps between policies adopted at the Union level and the practices at the national level widened, the normative domain is often defeated by several key principles of *realpolitik*—best articulated in the Classical Realist School of thought. While solidarity and commonality are principles upon which the ideal functionality of the EU are based, the refugee crisis has demonstrated that national self-interest in particular retains the upper hand in Europe when it comes to sharing the burden of refugee placement and hospitality for asylum seekers.

[1]A refugee is defined as an individual, who "owing to well-founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group or political opinion, is outside the country of his nationality and is unable or, owing to such fear, is unwilling to avail himself of the protection of that country" (United Nations 2010).

This article first discusses briefly the ideas of solidarity and burden sharing as supranational ideals at the base of the EU. We then develop how the ideals have been incorporated into the pillars of EU integration practice and law in its approach to international migration. This is contrasted with some relevant principles drawn from the key tenets of classical realist thought. We next analyze the Union's recent approaches and measures toward the refugee crisis from 2015 and pinpoint the areas where classical realist assumptions still trump the ideals of commonality and solidarity upon which the EU's recent and current refugee policies are based. These areas are relocation; resettlement; return; the Dublin System of asylum; The European Border Control and Coast Guard; and the EU-Turkey statement. The final section concludes.

Supranational Ideals: Burden Sharing, Solidarity, and Hospitality

The EU has faced serious challenges both internally (which has raised questions in terms of the principle of "solidarity" among member states) and externally (which has caused problems in terms of the principle of "hospitality"). Hospitality, in its simplest form, can be defined as openness toward foreigners at home as an ethical tradition implying a sort of moral duty. However, different interpretations of hospitality in the context of the EU prove how ethical values may vary in terms of subject and context in foreign policy. For instance, the ethics of hospitality was emphasized almost unconditionally in the process of Central and Eastern European enlargement, and in proposals for Balkan enlargement. Yet, when considering the European Neighborhood Policy, the practice of hospitality becomes more conditional (Bulley 2014, 175). The refugee crisis, as Bulley (2017, 118) argued, reveals that the EU's hospitality functions rather like an "immune system" which generates and preserves both the space and the ethos of the EU's "home" community from any possible hazard of instability coming from abroad. The resulting tensions have institutionalized ambiguity in hospitality practices that simultaneously welcome and exclude (Bulley 2017, 118).

According to EU Asylum Law, the principle of solidarity is defined as the fair sharing of the "burden" or "responsibility" of managing an increasing number of asylum seekers among the member states—including the financial implications of this burden sharing. Solidarity among member states is also emphasized under the provisions of the Area of Freedom, Security, and Justice of Lisbon Treaty (Mitsilegas 2018, 197). The main problems confronting solidarity involve unequal refugee burden sharing throughout the Union and failed regional policy harmonization

initiatives. These have led to unduly heavy burdens placed on certain EU states; increased tensions between some EU states; tensions between states and regional government directives; and successive layers of increasingly complex policies that only partially patch over fundamental flaws in the pillars of the EU approach to migration. The issues have produced what Thielemann (2017) calls "free-riding and burden-shifting dynamics" that have rendered the practice of solidarity in the Union regarding the refugee crisis as symbolic, at best. We argue that the EU's response to the crisis has demonstrated that national sovereign states privilege their interests at the expense of a genuine commitment to solidarity. The refugee crisis has created opportunities for EU member states to harmonize their legal framework on refugee protection and to cooperate with third countries. However, as the following sections reveal, classical realism still prevails in these international affairs. In consequence, we suggest that the EU's half-century of progress, which has continued via constituent principles, ideas, and values, has been considerably undermined.

Fundamental Pillars of the European Union's Approach to International Migration

With the adoption of the Geneva Convention and its Additional Protocol, state sovereignty was limited to ensure the protection of human beings from suffering human rights violations and the arbitrary practices of sovereign states. In line with international efforts, growing regional developments have achieved some progress regarding human rights protection alongside the accelerated integration of the EU. Migration, asylum, policing, and judicial cooperation have become new collective policy agendas in Europe since the 1970s. The fundamental pillars of the EU's approach to international migration have been closely related to the Union's integration process. Cross-border movements due to the devastation of the Second World War (WWII) and the revival of European integration, especially the Single European Act, were the driving forces of these new agendas. Under the Council of Europe, the establishment of the "Trevi Group"[2] in 1976, and the creation of Ad Hoc Groups on Immigration and Organized Crime[3] formed initial efforts to create a common approach to international migration (Uçarer 2010, 307–308).

[2]The "Trevi Group," which was established to combat terrorism, expanded its field of interests to include illegal immigration and refugee issues in 1980.

[3]These structures were not formally part of European integration. But they structured the development of common migration policy through creating intergovernmental and transnational policy networks (Huysmans 2006, 66).

The Schengen Agreement

The striking step for a common approach to international migration occurred with the abolition of the internal borders of five European Community countries[4] with the Schengen[5] Agreement in 1985. This was mainly based on the idea of the free and unrestricted movement of people across the borders within the Schengen Area (Stancova 2009, 31). With the creation of the Schengen framework, a coordinated asylum system became institutionalized, common visa policy was introduced, and cooperation in judicial and law enforcement spheres started (Uçarer 2010, 309). Since then, the Schengen Area has expanded with European integration, currently covering 26 states. Yet the Schengen Area not only led to the abolition of internal borders, it also led to the rise of external borders concerning international migration (Huysmans 2006, 85).

Cooperation in the Fields of Justice and Home Affairs: Key Treaties and Programs

With the entry into force of the Maastricht Agreement in 1993, Justice and Home Affairs (JHA) has been defined as the "third pillar" of the EU. Although it was an important step for developing asylum, migration rules, and police and justice cooperation under the JHA, the fact that the JHA was based on intergovernmental dialogue and compromise diminished its effectiveness. In consequence, policies on visas, asylum, migration, and the free movement of persons, including third-country nationals (TCNs), were transferred to the first pillar, under the Title IV of the Amsterdam Treaty in 1997. Thus, significant parts of the JHA were communitarized (with the exception of criminal matters). Moreover, the Schengen system was integrated into the EU's acquis, significantly Europeanizing this area following the Treaty of Amsterdam. However, the most important reforms were made with the Lisbon Treaty (which came into force in 2009) to ensure effective decision-making and policy-making mechanisms at the Union level by expanding the scope of authority of the institutions[6] of the Union (Uçarer 2010, 311–15).

After the Amsterdam Treaty entered into force, the Tampere Programme (1999–2004) was framed to create an Area of Freedom, Security, and Justice which also built the future of the JHA. The Tampere

[4]France, Germany, Belgium, Luxembourg, and the Netherlands.
[5]In mid-2020, the Schengen area included Iceland, Norway, Switzerland, and Liechtenstein, as well as members of the European Union, except the United Kingdom and Ireland.
[6]European Parliament, European Court of Justice, European Council, and the EC.

Programme aimed at a partnership with the origin countries, fair treatment of TCNs, the establishment of a Common European Asylum System, and the management of migration flows (European Parliament 1999). The objectives of the Tampere Programme reveal that JHA is not an area related only to the internal affairs of the EU, but also closely related to its external affairs (Uçarer 2010, 316). As a result, the Hague Programme (2004-2009) emphasized both the internal and external dimensions of security matters (European Council 2005, 1–2). Following the Tampere and the Hague Programmes, the third multi-year program adopted by the EU, covering the years 2010–2014, was the Stockholm Program. This focused on the reassessment and improvement of the relevant regional legislation. However, the effectiveness of the Stockholm Programme was low compared with its two predecessors due to the economic, political, and geopolitical problems of the period. Economically, the recession started to affect the EU in 2008, and politically, populist policies against regular and irregular human mobility, which increased with the influence of the Arab Spring from late 2011, have required new approaches (Collet 2014, 1–4).

Combating Irregular Migration

In addition to the above multi-year programs, the Union's policy on the external dimension of migration, which had been functioning under the "Global Approach to Migration" (GAM) since 2005, was re-launched as the "Global Approach to Migration and Mobility" (GAMM) in 2011 (EC 2011, 3). The GAM framework originally consisted of combating irregular migration, promoting legal migration, regulating work and residence permits, and regulating the EU's partnerships with third countries in migration management (Yılmaz-Elmas 2016, 39). After the breakdown of the Arab Spring, the framework, re-launched as GAMM, spanned

> organizing and facilitating legal migration and mobility; preventing and reducing irregular migration and trafficking in human beings; promoting international protection and enhancing the external dimension of asylum policy; maximizing the development impact of migration and mobility. (EC 2011, 7)

After all, the enormous human mobility that emerged as a result of the ongoing internal conflicts in Syria reveals that the existing political framework was inadequate—and the need for new mechanisms capable of dealing with the emergencies surrounding the refugee crisis became painfully

clear. Shortly we discuss the most important of these mechanisms, how they attempted to embody the normative ideals of solidarity and fair burden sharing, and how in practice this has not been a resounding success. However, before we do so, it is useful to turn briefly to some of the premises and principles of classical realism that we argue continue to compete with, and often undermine, EU refugee policies advocating solidarity.

Key Principles of Classical Realism

It is well known that the principles of *realpolitik* drawn from classical realist theory continue to dominate many areas of international relations. And, as we shall see, recent EU refugee policy and its reception by member states is no exception. Three fundamental premises are salient. First, *state centrism* refers to the idea that states are the central actors in international politics and that they are unitary and rational actors whose purpose is to maintain security for their citizens (Donnelly 2005, 29–31). The second core premise is derived from the Hobbesian view that human nature is *selfish* and such unlimited egoistic behavior can only be restrained under the hierarchical institutions offered and upheld by strong states (Donnelly 2005, 30). Because states are understood as being similar to individuals (since they are an amalgamation of individuals), the behavior of individual states in the international realm is similarly understood to always pursue their own well-being. This makes them competitive (Jackson and Sørensen 2013, 66). The third premise of realism concerns *anarchy* in international politics. Since there is no powerful higher authority to control the egoistic behavior of individual states, international relations are necessarily conflictual, and conflicts are ultimately resolved by war (Jackson and Sørensen 2013, 66). Absent any higher authority to make and enforce laws, every state must look out for its own survival.

For reasons of parsimony, we cannot cover the details of classical realism in depth here. However, three familiar additional principles are worth underlining briefly to return to later. First, in classical times, Thucydides (431 B.C.E.) articulated the "iron law of realism" (Dunne and Schmidt 2004, 169) that "the standard of justice depends on the equality of power to compel and that the strong do what they have the power to do and the weak accept what they have to accept" (Thucydides 1972, 400–402).

Second, Machiavelli ([1532] 2008, 257–83) separated private morality—fidelity, friendship, honesty, and (Christian) ethics—from the political responsibility required for survival. So he famously urged the prince to behave flexibly and contrary to moral values *if required* by the practical

conditions facing him. The power of the strongest and the detachment of morality from politics were reworked in modern form by E.H. Carr. For Carr ([1939] 2015, 98–107), those interested in international politics can only achieve reality through the analysis of real conditions, not imaginary assumptions about common interests or morality, since "morality is also the product of power" (Rynning and Guzzini 2002, 6). The principle was elaborated by Morgenthau: political realism requires an awareness that morality should not be applied in the policies of states; since moral principles can and do vary across states, this sort of application might lead to calamities. Indeed, attempting to rule the world within a single moral framework is to make the world much more dangerous. As such, he emphasized that politics and political actions should be approached as an "autonomous sphere" (Morgenthau [1948] 1993, 5–17).

A third key principle, traceable to Morgenthau's ([1948] 1993, 4–5, 31) interpretation of Hobbes, is that the aim of international politics may be defined in terms of religious, philosophical, social, or economic concerns, but when it comes to realizing these goals, all actors need power which causes an incessant struggle for power. Contrary to expectations, neither the abolition of trade barriers nor the establishment of international institutions intended to create a harmony of interest to prevent wars can eliminate the game of power politics (Morgenthau [1948] 1993, 37–39). We now turn to review the EU's main institutional response to the refugee crisis and, in doing so, show how the premises and principles of classical realism noted here appeared in various guises in the key concepts and processes of the European Agenda on Migration (EAM).

The EU's Response to the Refugee Crisis: The European Agenda on Migration

The over 4,000 deaths in the Mediterranean in 2015 (Ellyatt 2020) revealed that the EU needed to take common action. In this context, an *Emergency Action Plan* was initially formed. The plan included strengthening joint operations in the Mediterranean; developing a systematic struggle against human trafficking; regular meetings to follow developments via institutions such as EUROPOL; the creation of EU-wide projects for resettlement; the creation of new return programs; and achieving agreements with third countries (EC 2015c). The EAM, formed in the following period, emerged as a new policy adopted in May 2015 for managing the external dimension of EU migration.

After the EAM was presented by the Commission in 2015, emphasizing the fact that migration is not an area to be managed alone by the

member states, the Union began to form the necessary building blocks for a sustainable system—including immediate measures for the refugee crisis—providing stronger border control (European Union 2017, 1). Saving lives, combating human trafficking, the relocation of refugees, and providing international protection were determined as prominent areas requiring urgent action (EC 2015a, 1–4).

To ensure the best possible management of human movement, the EAM was planned to rest on four pillars. Under the first pillar, attention was drawn to the resolution of the root causes of irregular migration (such as economic and political turmoil and climate change) as well as to the fight against human trafficking. The importance of cooperation with third countries and the need to establish an effective return apparatus were also emphasized (EC 2015a, 7). The second pillar of the Agenda included measurements which prescribe improving the role and capacity of the EU External Bureau of Borders, FRONTEX, promoting actions such as standard border management across the Union, strengthening EU coordination in border security services, the revision of the Smart Borders plan, and increasing the capacity of third countries to manage their borders (EC 2015a, 10). The third pillar was based on developing a Common Asylum System, while the fourth pillar aimed to encourage legal migration options by revising and modernizing the existing system. To achieve this goal, the importance of establishing a dialogue platform for economic migration and strengthening the link between development and migration were highlighted (EC 2015a, 11–17).

Despite the medium- and long-term policy prescriptions of the Union, in practice the most advanced dimension of the EU's migration regime is related to combating mixed human flows which consist of irregular migration and asylum seekers. In this struggle, the goal of preventing irregular cross-border activities has an important place. As such, FRONTEX carried out joint operations along land and sea borders, regulating the external border controls of member states (Hampshire 2016, 539). Legal migration regulation, including areas such as economic migration and family migration and policies on the integration of migrants, has also been somewhat regulated at the EU level. The national level remains the most effective level in decision making concerning the admissions of migrants and refugees (Hampshire 2016, 540). That is why Faure, Gavas, and Knoll (2015, 9) note that the EU's migration governance is hierarchic, since member states harbor perennial opposition and skepticism toward the high-level governance of human movement through the Union's supranational bodies.

In the case of the Union's migration governance, member states mostly have followed their policy agenda in terms of their own power and security perceptions, even if these contradict the EU's common institutions, ideals, and values. When it comes to the implementation of solidarity, burden sharing, hospitality, and other measures stipulated by the Union, observable failures have been recorded in several areas. The next section outlines the key concepts and processes of the initial steps of the EAM, before looking in more depth at three of the key failures.

Key Concepts and Processes of the Agenda

Under the EAM, two packages were adopted by the EU Commission, the first in May 2015, and the second in September 2015. Six measures were developed under the first implementation package for an emergency in the Mediterranean. We now examine each in turn.

Relocation

In terms of humanitarian emergencies, *relocation* refers to the process of transferring those people facing immediate danger from conflictual places to safe places, in which effective protection is provided, within the country. In the context of the EU, relocation means transferring people from one member state to another to provide humanitarian protection (Glossary on Migration 2019, 176). It is one of the main pillars of the solidarity principle among member states.

For this reason, the first measure of the EAM was the creation of an Emergency Relocation Mechanism to share the burdens of Greece and Italy which faced intensive refugee flows. Based on the Council resolution of September 14, 2015, the relocation of 24,000 people from Italy and 16,000 from Greece was adopted under the first implementation package. With the Council's September 22, 2015, decision, it was accepted that, through a temporary mechanism, 120,000 people would be relocated from Greece and Italy in the following two years. Accordingly, relocation, which started on September 15, 2015, was expected to be completed by September 17, 2017. The September 15 decision was accepted by a majority vote, while Slovakia, the Czech Republic, Romania, and Hungary voted against, and Finland abstained (European Parliament 2015, 4).

According to EC (2017a, 1) data, almost 32,000 persons who needed international protection in Italy (10,265) and Greece (21,238) were relocated in another EU member state within these two years

(2015–2017). The quantitative objective of relocation was, nevertheless, not achieved as transfer numbers were far below expectations. Although other developments such as the Turkey-EU Settlement (discussed later) have reduced irregular flows, some states behaved reluctantly, while others, especially Visegrad,[7] were highly resistant to relocation quotas.

The Visegrad nations strongly opposed the relocation quotas set by the EC and resisted acceptance of asylum seekers (European Parliament 2019a, 1–3). As such, they not only violated the Commission decisions, but also undermined the principle of solidarity among member states. This harmed the Union's moral as well as legal legitimacy. Under the rule of populist right-wing parties, Poland and Hungary developed rhetoric that mandatory relocation programs threatened their national, economic, and cultural interests (*Euractiv* 2019; Meretab 2018). It should be noted that Slovakia and the Czech Republic held a less critical stance (Meretab 2018). Nevertheless, together they accepted just 28 persons for relocation while Hungary and Poland did not accept any for relocation (EC 2017a, 2).

These sorts of violations, as classical realists suggest, belie the true nature of international politics at least in two patterns. First, from Machiavelli to Morgenthau, almost all classical realists pointed out the distinction between morality and politics. For them, ethical reasons cannot substitute or surmount the actors' interests. That is why Machiavelli reminded his prince of his political responsibility for survival, instead of fidelity, ethics, or honesty. In congruence, Carr criticized utopians for postulating desired ideals as the equivalent of progress and universal common good without considering the facts of international politics.

Second, classical realism assumes that states are unitary rational actors that maintain security for their citizens and ensure their own interests and power in an anarchic system. The Visegrad countries viewed the relocation schemes as a gross interference in their national sovereignty, jeopardizing their security and interests. Yet the EC initiated an infringement procedure against Poland, Hungary, and the Czech Republic for their resistance in meeting their legal commitments regarding the refugee quotas (Meretab 2018). As in all legal systems, avoiding the fulfillment of legal obligations requires the imposition of specific sanctions for these actors (Meretab 2018). In fact, this move could only mitigate their stark opposition to the extent it could affect their power position in competitive international politics.

[7]Poland, Hungary, the Czech Republic, and Slovakia.

Resettlement

Resettlement involves the relocation and integration of individuals fleeing war or persecution to a safer geographical area—for our purposes, from a third state to an EU member state. The term is often used to define a process that begins with the selection of refugees to be placed and ends with their placement in any EU country granting refugee status, and even naturalization (Glossary on Migration 2011, 84).

The European Commission Plan, submitted on June 2015, proposed that 20,000 people who needed international protection would be resettled from third countries to EU countries via voluntary distribution across Europe over two years (EC 2015b, 4). Also, with the proposal adopted on July 22, 2015, Norway, Switzerland, Liechtenstein, and Iceland accepted to participate in the program (European Council 2015, 5–6). Finally, within the context of the Resettlement Plan, it was decided to place 22,500 people from third countries in 32 EU states (EC 2016a, 3).

This number of accepted commitments is very low, given the millions in dire need of international protection. Unfortunately, even this relatively low quantitative target also could not be achieved during the two years. According to EC data for 2017, the total number of resettlements, outside the Turkey-EU Statement, was around 18,000 (EC 2017b, 1–2). The current plan aims to resettle over 50,000 persons who need international protection from third countries, including the Turkey-EU Statement, with a pledge to resettle over 30,000 refugees in 2020 alone. Although the Commission has been working on establishing a *Permanent Union Resettlement Framework* since 2016 (EC 2019a, 2), such initiatives have been soundly challenged by the reluctance of member states and critics from rightist political movements across the Union (EC 2019a).

Anti-immigration practices in the EU member states also appear to undermine the normative values, and thus the soft power and legitimacy, of the EU in the international arena. For the modern state, sovereignty is commonly defined as "national sovereignty" and non-citizens are assumed to be a threat likely to erode national sovereignty (Arslan 2017, 29). Hence, the minimum level of acceptance of persons who need international protection is considered to be appropriately set by member states. In this context, the political arena, which would be characterized by positive normative elements, as the common values of the Union, are replaced by an area where foreigners are defined as "normative threat." The normative threat is a psychological tendency that refers to the intolerance of individuals who feel threatened (Krastev 2017, 94–95).

From a classical realist viewpoint—which acknowledges that the primary tasks of the state apparatus are to survive and to ensure the safety of their citizens—it is therefore not surprising that national security considerations surpass the "common values" of the EU. Moreover, it makes sense that a main reason underlying the psychological tendency of perceiving threats is inextricably related to the pessimistic view of "human nature" defined in classical realism. As we shall see, the realist goal of ensuring security—that is, the protection of national sovereignty—has brought measures that prevent mixed flows, including the influx of refugees.

Return

One of the basic building blocks of the international refugee regime is the prohibition of refoulement.[8] This prohibits the repatriation of persons (who need international protection) to their country or region of origin if they would not be safe there. In addition to the international regime under the United Nations, the EU has pursued its goal of taking these standards a step further both Union-wide and in its relations with third countries. However, in times of crisis, heightened measures to prevent irregular migration can conflict with obligations to international law, particularly the prohibition of refoulement. Return mechanisms are thus subject to criticisms since they can cause indirect violations of international law,[9] as well as criticisms surrounding inadequacies in the protection that is supposed[10] to be provided internationally. This situation might become clear by considering the autonomy of the political sphere as detached from law, ethics, or economy as classical realists so pointedly stated. The answer to the question of why states refrain from fulfilling their obligations to international law or some moral purposes may be comprehensible if states do, in fact, consider the political sphere to be autonomous—regardless of what regional or international directives say.

Against this backdrop, within the EU, alternatives to the prohibition of refoulement have been created. Examples include the Dublin Regulation's deadlock in the asylum system; increased security measures at the Union's external borders with the renewed European Border and

[8]Namely, the principle of *non-refoulement*.

[9]The indirect violation of the principle of *non-refoulement* concerns cases where refugees could be extradited to a country where they would be exposed to a serious risk of onward removal, and thus could still end up in an unsafe country.

[10]According to Article 14 of the Universal Declaration of Human Rights, "Everyone has the right to seek and to enjoy in other countries asylum from persecution."

Coast Guard; and the conclusion of readmission agreements with third countries, notably with Turkey. We discuss each of these cases in more detail next.

Alternative Mechanisms

The Dublin System: The Asylum Procedure of the European Union

The Dublin Convention, signed in 1990, came into force in 1997 only after all member states signed and ratified it. Before the Dublin Convention, member states signed "readmission agreements" among themselves. According to these agreements, asylum seekers could be returned to safe third countries they had previously passed. The concept of repatriation to the safe third country was also maintained by the Dublin Convention (Refugee Council Briefing 2002, 1).

Although the Dublin Convention is considered as the cornerstone of the European Common Migration Policy, it has been criticized for causing violations of international human rights and for overburdening frontier states (Moses 2016). Despite the criticism, the Dublin II Regulations of September 2003 maintained the concept of "third safe country" (European Council on Refugees and Exiles 2006, 6, 10–11). The Dublin III Regulations, in force since 2013, brought some responsibilities to states for the proper assessment of the effects of transfers before the return of an asylum seeker to another country (Hampshire 2016, 538). However, the recent refugee crisis once again unveiled the inadequacy of the Dublin System, leading the Commission to propose some reforms in 2017. Yet, instead of fundamentally overhauling the Dublin regime, the Commission added successive supplemental layers to the original system which have not proven to be particularly successful.

According to the Commission's proposal, underlining the unsustainability of the current Dublin System in the face of unexpected events, the relocation of asylum seekers in other member states should take effect when it is decided that one of the member states is under intense pressure. It was proposed to establish a "corrective allocation mechanism" arranged according to the population density and Gross Domestic Product of the member states. If, however, a member state decided *not* to accept asylum seekers from a state under pressure, a "financial solidarity system" would be required instead, obliging a € 250,000 (for 12 months) solidarity contribution for each asylum seeker (EC 2016b, 3).

Although this proposal was aimed to increase the solidarity and responsibility within the Union, the leaders have still not achieved an

agreement (European Parliament 2019a) despite ongoing discussions for nearly three years. For some member states,[11] who have blocked the unanimity required to move the proposal forward, it contradicts the principle of subsidiarity (European Parliament 2019a, 7, 11). Hungary rejected any mandatory admittance quota in 2018 and called for amendments that tightened the System's security and expulsion policies; other member states[12] have strongly criticized the fairness of the share of applicants each member state could be expected to take (European Parliament 2019a, 11). Accordingly, the procedures guiding decisions on who should be admitted to their country and ensuring that each financial solidarity contribution is within national competence remain unresolved and disagreement remains rife. Again, the issue very clearly revolves around the proposal's excessive intervention into the sphere of national sovereignty (Nielsen and Zalan 2017) and reveals how nation-states, as unitary and rational actors in the classical realist understanding, pursue self-interest at the expense of supporting the supranational institutionalization steps of the Union. Rather than shoring up the deficiencies in the EAM to enhance the principle and practice of solidarity in the Union, these proposed supplemental procedures continue to languish amid squabbles over fairness understood from a national, not a common, perspective.

The European Border and Coast Guard: The Line between the Union and Beyond

In line with the objective of the EAM to increase the security of the Union's external borders in the medium and long term, the European Border and Coast Guard was established in October 2016 on the foundations of FRONTEX (2017, 11) for the effective implementation of European integrated border management. Integrated border management is defined as the common area of responsibility of the national authorities and the Union. Its most important components are coastguard missions which consist of search and rescue operations; monitoring human movements within and toward the Union; the detection and prevention of cross-border crimes such as terrorism and human smuggling; the investigation of threats and internal security risks affecting external border security; and the evaluation of vulnerabilities and return operations (FRONTEX 2017, 11).

[11]Hungary, Slovakia, Czech Republic, Poland, Romania, and Italy.
[12]Cyprus, Greece, Italy, Malta, and Spain.

In this context, nation-states seem indubitably more willing to heighten and fortify the walls of the Union, which has been labeled "Fortress Europe" for many years. The new Bureau raised criticisms on the ground that FRONTEX has become an EU "return office." Accordingly, the task of this new Bureau is to ensure more effective deportation procedures in the EU (Carrera *et al.* 2017, 47). These measures reaffirm the basic paradigms of classical realism in some areas. In the international arena, where interests are defined in terms of power, the main goal of preserving the existing power balance consistently with demographic, economic, or military interests (rather than ethical values and humanitarian concerns) has still prevailed. Member states have displayed intellectual solidarity more for controlling and preventing refugee flows than for sharing the burden among themselves. For instance, Austria, Denmark, France, Germany, Norway, and Sweden have temporarily suspended the Schengen rules. These countries introduced internal border checks from 2015 to the present even though the limit is just two years—since the current rules are ambiguous and subject to legal loopholes (European Parliament 2019b). Some have argued that the extraordinary circumstances of irregular migration flows in 2015 were self-interestedly extended in this way in 2018–2019 to shirk fair burden sharing (European Parliament 2019b). It is nevertheless patent that the effects of the 2020 coronavirus pandemic have legitimately constituted new extraordinary circumstances for internal border controls across the Union and thus COVID-19 has eclipsed this particular issue for now.

Other indicators of controlling and preventing refugee flows and fortifying borders include societal responses such as the increasing influence of populist political groups across the region, one of which is "*Alternative for Germany*" in Germany, and most importantly Brexit in the United Kingdom. Two key populist elements, national sovereignty and immigration restrictions, drove the official slogans of the Brexit campaign and subsequent negotiations with the EU: Farage's "we want our country back" and May's "control of our own laws" (Morillas 2017). The Euroskeptic flavor of sovereignty issues and the widespread perceived unfairness of European control over U.K. borders and immigration policy[13] in Britain certainly revealed that national sovereignty—and

[13]Britain opted into the minimum standards of treatment and conditions set by the first round of agreements of the Common European Asylum System in 2005, but opted *out* of the second round that set common (i.e., higher) standards of treatment/reception in 2013 on the grounds of preserving national sovereignty over its laws and borders regarding refugees.

therefore national interests—were driven from the societal level and led to international outcomes in a way classical realists would expect. Brexit is a clear indication that the Union's harmonization policies and institutional response to solidarity and burden sharing have not been able to overcome the prevailing realist principles of national interest and sovereign control of national borders and laws.

The most recent Union proposal in the area of burden sharing occurred on September 23, 2020, when the EC unveiled a new "compulsory solidarity" plan that bears even more hallmarks of a politically realist attempt to appease anti-migrant member states (*France 24* 2020). EC President von der Leyen was reported to have said, "'We want to live up to our values, and at the same time face the challenges of a globalized world' . . . warning that the old system 'no longer works'" (*France 24* 2020). Instead of the compulsory quotas for refugee settlement hoped-for by human rights and refugee activists, the plan is proposing harsher border controls and quicker procedures for expelling rejected asylum applicants (*France 24* 2020). It also proposes that member states not wishing to volunteer to take more migrants "can instead take charge of sending those whose asylum requests are rejected back to their homelands" (*France 24* 2020) in place of the mandatory relocation quotas that so many member states have resisted (Palaiologos 2020). Praxis is indeed trumping the normative values at the base of former EU refugee policy here. Or, at the very least, the principle of solidarity is morphing to take on a much more practical, less normative, meaning than before.

The EU-Turkey Statement: Beyond Borders

Because of its geographic proximity and position, Turkey is an important actor for EU border security and migration management. Indeed, the Union's dealings with Turkey could well have been an opportunity for the EU to demonstrate its political will to cooperate in genuine solidarity with countries outside its borders; countries that impact deeply upon EU concerns like the refugee crisis. By 2015, the EU's migration management and border security opened a new era in Turkey-EU relations (Benvenuti 2017, 4). While the parties have mutually lost faith in each other regarding the readmission agreement and a visa liberalization process (EC 2014)—touted to introduce a visa waiver for Turkish citizens entering the EU—the Joint Action Plan and the Turkey-EU Statement were signed in November 29, 2015, and on March 18, 2016, respectively. In this context, the deepening of the refugee crisis in a way contributed to the restoration of deteriorating Turkey-EU relations for

a while (Saatçioğlu 2016). However, in the following period, the positive atmosphere in relations was again interrupted (Nas 2016, 31).

The Joint Action Plan attempted to handle the refugee crisis in three ways. First, it threw into sharp relief the reasons underlying the mass influx of Syrians; second, through the Plan, the EU committed itself to support those Syrians under temporary protection in Turkey; and third, the Plan aimed to develop cooperation between the parties for the prevention of irregular migration toward the EU (Avrupa Birliği Bakanlığı 2015, 1). On March 18, 2016, Turkey and the EU reached an agreement to end irregular migration to Europe via Turkish waters (EC 2019b). According to the agreement, the steps were as follows: (1) irregular migrants who reached Greece via the Aegean Sea should be returned to Turkey and, in return, the Union committed to resettling one Syrian for each return; (2) Turkey committed to taking some measures to prevent irregular migration toward the Union and, in return, the EU committed to the Voluntary Humanitarian Admission Plan to offer a legal and safe resettlement route for irregular migrants "to create a system of solidarity and burden sharing with Turkey" (Council of the European Union 2017). Related commitments by the EU include the acceleration of the process of visa liberalization for Turkish citizens; taking some steps to modernize customs union between the EU and Turkey and opening new chapters in accession negotiations; and providing financial assistance to improve the protection of refugees in Turkey (European Council 2016).

As of 2019, tangible results have been achieved by the EU-Turkey Statement. The EC (2019b) announced that irregular transitions decreased by 97 percent; € 3 billion was contracted under the Facility for Refugees from the EU budget, while almost half of the second € 3 billion—contributed by EU member states—was committed to Turkey in 2019. Over 20,000 Syrians who need international protection have been resettled in member states of the Union (EC 2019b). However, although irregular migration has declined considerably, the Voluntary Humanitarian Admission Plan has still not yet been launched, leading to an extended stay of 3.6 million Syrians in Turkey (in addition to over 300,000 refugees from other countries) at a cost several times higher than the € 6 billion promised by the EU (Global Utmaning 2020). According to Global Utmaning (2020), Turkey is "currently hosting the largest refugee population in the world." Regardless of the incredibly positive tone of the EC (2019b) situation report, Turkey is clearly one area where the failures of supranational EU refugee management are particularly salient.

Visa liberalization has also not been realized due to problems in the following issue areas: the adoption of measures for the prevention of corruption, the revision of legislation and practices concerning terrorism, to make appropriate arrangements with EU standards on the protection of personal data, and effective judicial cooperation (EC 2017c, 10). Moreover, Turkey's progress toward full membership has remained fraught with difficulties and is now completely stalled. Hence, strategic partnership options instead of full membership started to be more pronounced in EU circles. Besides, lacking political will toward Turkey's full membership has reduced the impact of the policy of conditionality (Nas 2016, 32). Turkey's full membership debate can easily become a factor for pressure in domestic policy areas in the EU member states, so neither visa liberalization nor full EU membership is likely to take shape soon.

Despite the optimistic values-based expectations for the future of EU-Turkey relations, grounded on the beginning of a new positive and cooperative era, developments reveal that the EU has followed an interest-oriented approach based on a realist understanding, rather than one of commonality and even partial solidarity across one of the region's most pressured borders. The EU aimed to externalize the refugee crisis through a compromise with Turkey via the EU-Turkey Statement. Turkey likewise primarily sought its own national progress in accession negotiations and an assurance for visa liberalization as soon as possible. As classical realists would identify, the varied interests of these actors reflect a conflict of interests instead of a real harmony of interests. In consequence, the Union instrumentalized the negotiation process with Turkey to achieve its security interests while Turkey prioritized the negotiation talks as well as visa liberalization. Turkey has played a critical role in preventing mixed flows to the Union—which served the interests of the EU. Yet the expected progress and benefits from the compromise for Turkey have not been achieved. The experience is reminiscent of a famous point from Thucydides, the father of classical realism, underlining the "iron law of realism": the strong do what they have the power to do and the weak accept what they have to suffer (Dunne and Schmidt 2004, 169; Thucydides 1972, 400–402).

Despite the Union's stated commitment to the normative principle of solidarity in the refugee crisis and its aftermath, realist *regional* self-interest has prevailed in its practical dealings with Turkey. And the practical politics of realism have continued to supersede European values now the refugee crisis has deepened in Turkey in 2020. On one hand, in

the absence of sufficient funding and incentives, Turkey has relaxed controls on the movement of the latest influx of Syrian refugees toward the Greek border, while "European politicians sidestep responsibility and instead blame Ankara for the situation" (*TRT World* 2020). It remains to be seen whether the plight of so many will be used as a political tool by the regional powers in the months or years to come. The precedents covered in this article suggest it is, unfortunately, likely that they will be.

Conclusion

This study has discussed some effects of EU supranational governance on measures handling the refugee crisis, specifically key mechanisms that have confounded fair burden sharing among Union members regarding refugees and asylum-seeking policy. We argued that normative principles, like solidarity and burden sharing, have been incorporated into the pillars of regional policy and in the attempts of the Union's supranational institutions to harmonize national policies within, and even beyond, the borders of Europe. In practice, though, at both the national and supranational levels, several self-interested motives more associated with realist motives belie the normative ideals. Our exploration of the Union's internal policies managing the refugee crisis (among member states, and concerning border security policies and initiatives) and in its cooperation with third countries (as in the case of Turkey-EU Statement) shows that praxis has continually either trumped or undermined the normative ideals set forth in the EAM, as well as in the various EU policy "band aids" applied subsequently.

Given the Union's *internal arrangements*, as classical realists suppose, individual states have acted as unitary actors instead of members of a supranational whole facing a politically devastating crisis in common. Despite their commitments at the Union level, many have followed their perceived national security and other national political interests whenever Union-wide directives for a fairer distribution of the refugee burden were seen to threaten them. This attitude has led to two key problems. First, even though member states officially committed to solidarity with the Union in the management of asylum pressures, they have been reluctant to engage in burden sharing in practice. Second, although seeking asylum is a human right, refraining from ensuring this right due to security interests undermines the legitimacy of the very values and ideas on which the Union is based. The focus on the return and repatriation of people in need of asylum rather than on local admission and integration reflects this attitude. Another example of this attitude

has become visible during the negotiations for the Common European Asylum System, since it has not been established yet mostly due to the reservations of member states. At the border level, increasing security measures have also reverberated throughout the EU member states security concerns toward human movement. The new Bureau, based on foundations provided by FRONTEX, indicates that even if there are strong humanitarian imperatives, either denial of entry or the return of refugee flows to unsafe countries (or to safe countries likely to move them on again to unsafe ones) may well be prioritized by some member states. The complex challenge for the EU is in fact less about "striking a working balance" between the normative principle of solidarity and the practical considerations of collective responsibility (von der Leyen cited in Palaiologos 2020), and more to do with its practical ability (or inability) to cajole, negotiate, or otherwise force a consensus between radically self-interested member states on the best ways to handle refugee flows and effective repatriation. While successes have been seen, the failures are more than prevalent.

At the external level, the Turkey-EU Statement appears as potentially one of the most innovative policy instruments (applied beyond EU borders) since the adoption of the EAM in 2015. The Statement aimed to control the largest migration route to the Union via cooperation with Turkey. Ultimately, the Union achieved many of its expected outcomes to dampen the influx of refugees to EU states. The Turkish state, however, did not achieve its aim to join the Union and instead now hosts the largest refugee population in the world (3.9 million). One strong indication is that conflicts of interest are still more dominant than the harmony of interests in bilateral relations between the EU and Turkey, in line with the principles of classical realism. The September 2020 EC proposal for "compulsory solidarity" may fare no better in balancing a genuine commitment to Union-wide solidarity over the refugee situation and the fair burden sharing it involves against the prevailing practicalities of national self-interest.

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